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| CASE #      | CASE NAME                             | HEARING NAME                                                           |
|-------------|---------------------------------------|------------------------------------------------------------------------|
| CVPS2400936 | MARTINEZ VS UNITED HEALTH GROUP, INC. | MOTION TO VACATE ORDER RE JURY TRIAL WAIVER BY LAURA PATRICIA MARTINEZ |

**Tentative Ruling:** Denied.

Responding party to provide notice pursuant to CCP 1019.5.

Plaintiff's request for relief is denied. Trial is in approximately 90 days. The potential prejudice to the parties, including opposing defendant, with discovery related issues is more evident as the close of discovery approaches. This court found a CCP 631 waiver on September 10, 2025 yet the instant request for relief was not filed until May 26, 2026. This does not qualify as excusable neglect.

2.

| CASE #      | CASE NAME                 | HEARING NAME                                                                           |
|-------------|---------------------------|----------------------------------------------------------------------------------------|
| CVPS2500795 | MANSOORI VS WALMART, INC. | MOTION TO COMPEL FURTHER RESPONSES TO FORM INTERROGATORIES SET ONE BY MANSORA MANSOORI |

**Tentative Ruling:** Hearing continued to July 28, 2026 at 8:30 a.m. in Department PS2.

This is a personal injury action. Plaintiff Mansora Mansoori was picking up an order from Walmart, Inc. located at 34500 Monterey Avenue, Palm Desert, California on February 4, 2023. While walking through the parking lot, Plaintiff unexpectedly tripped on a protruding tree stump and fell. Plaintiff sustained injuries.

On January 30, 2025, Plaintiff filed her Complaint against Walmart and developer/property management company, Rothbart Development Corporation. On August 14, 2025, Plaintiff filed a DOE Amendment naming Vintage Associates, Inc. as a co-defendant.

On September 30, 2025, Plaintiff served an initial set of written discovery upon Defendant Vintage Associates, Inc. including Demand for Production of Documents, Form Interrogatories, Special Interrogatories, and Requests for Admission. Defendant provided objection-only responses on January 14, 2026.

Plaintiff now brings the instant motions to compel Defendant Vintage Associates, Inc. to provide further responses to Form Interrogatories, Special Interrogatories, and Requests for Admission. Another motion to compel further responses to the Demand for Production of Documents is set to be heard on June 9, 2026. Plaintiff also seeks monetary sanctions against Defendant for having to bring the instant motions.

In Opposition, Defendant asserts it has provided supplemental responses to all requests at issue making the instant motions moot. Defendant also argues monetary sanctions are not appropriate and the amount requested is excessive and unreasonable.

In Reply, Plaintiff states Defendant provided unverified further responses on the same day Plaintiff's Reply was due (June 1, 2026). Plaintiff argues this means no supplemental responses have been provided yet so the motions are not moot.

#### Motion to Compel Further Response(s)

Under CCP §§ 2031.310(b)(2), 2030.300(b)(1), 2033.290(b)(1) a motion to compel further responses must be accompanied by a meet and confer declaration. The motions are